

Anil Kumar Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT - C No. 36725 of 2019 · **Writ disposed; EE to hear objections and pass speaking order; s.127 open**

HEADNOTE

A consumer challenged a demand notice of Rs. 7,53,886 alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005. Without examining the demand on merits, the Court directed him to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for a limited period, and left any further grievance to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the demand.

FACTUAL SUMMARY

Anil Kumar Gupta challenged a demand notice dated 11 October 2019 for Rs. 7,53,886 issued by the Executive Engineer. He alleged that the electricity department was taking coercive action without giving him a hearing and without following the U.P. Electricity Supply Code, 2005. After an earlier order of 14 November 2019 listing the matter and staying coercive measures, a Division Bench heard the petition on 26 November 2019.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

demand notice — speaking final order — Section 127 appeal

HOLDING

Where a consumer challenges a demand notice alleging coercive recovery without hearing and without following the Supply Code, the writ court may, without deciding the demand on merits, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking final order, stay coercive action for a limited period, and relegate any further grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance revives the demand; default in filing objections vacates the stay. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

A consumer challenged a demand notice of Rs. 7,53,886 alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 11.10.2019 OF RS. 7,53,886 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and directed a speaking final order without examining those allegations or the quantum.

¶ 1